

was neither in a position to recognise the nature of the claimed subject-matter nor the category to which claim 1 belonged.

For the particularities of product-by-process claims, see in this chapter [II.A.7.](#)

4. Disclaimers

Disclaimers play an important role in the drafting of claims and amendments. The principles concerning the allowability of disclaimers are set out in chapter [II.E.1.7.3.e\)](#) "Drafting of disclaimers – clarity".

5. Claims supported by the description

5.1. General principles

[Art. 84 EPC](#) stipulates that the claims must be supported by the description. This requirement means that the subject-matter of the claim must be taken from the description and it is not admissible to claim something which is not described.

In decision [T.133/85](#) (OJ 1988, 441) the board took the view that a claim which did not include a feature described in the application (on the proper interpretation of the description) as an essential feature of the invention, and which was therefore inconsistent with the description, was not supported by the description for the purpose of [Art. 84 EPC 1973](#). The boards apply this principle as part of their established jurisprudence, see e.g. [T.409/91](#) (OJ 1994, 653), [T.939/92](#), [T.322/93](#), [T.556/93](#), [T.583/93](#), [T.659/93](#), [T.482/95](#), [T.616/95](#), [T.586/97](#), [T.687/98](#), [T.1076/00](#), [T.637/03](#), [T.1399/17](#). However, the requirement for all essential features to be indicated is inferred to some extent from different provisions of [Art. 84 EPC](#) (see in this chapter [II.A.3.2.](#)). In [T.2049/10](#) the board considered the topic "essential feature missing" explicitly not a question of clarity but of support by the description (both subsumed under [Art. 84 EPC](#)).

Many boards further stress that the requirement for the claims to be supported by the description was intended to ensure that the extent of protection as defined by the patent claims corresponds to the technical contribution of the disclosed invention to the art (see [T.409/91](#), OJ 1994, 653; [T.435/91](#), OJ 1995, 188; [T.1055/92](#), OJ 1995, 214; [T.659/93](#); [T.825/94](#); [T.586/97](#); [T.94/05](#); [T.1217/05](#); [T.1694/12](#); [T.809/12](#)). Therefore the claims must reflect the actual contribution to the art in such a way that the skilled person is able to perform the invention in the entire range claimed ([T.659/93](#), [T.94/05](#)). A purely formal support by the description, i.e. a verbatim repetition of the mention of a claimed feature, cannot meet these requirements ([T.94/05](#), summarised in the next section; see also [T.127/02](#), [T.1048/05](#), [T.758/13](#), [T.2483/16](#)). However, according to a different view, a review of the discussions in the various drafts to be found in the preparatory material suggests that the requirement for support of the claims was viewed rather as a formal matter to ensure that the description and claims had the same extent ([T.1020/03](#), OJ 2007, 204). In the case in point the board concluded that [Art. 84 EPC 1973](#) could not be used to force an applicant to cut down the scope of first or second medical use claims

considered too broad compared to any use disclosed in the description. Other decisions in turn consider both aspects (see e.g. T.297/05).

In T.695/16 the board noted that characterising features a and b in claim 1 were clear to the skilled person, i.e. their structural form, function and interrelation were clear. In the description there was at least a verbatim repetition of the characterising features of claim 1. Thus said features were also disclosed in a clear manner in the description, thereby supporting the wording of claim 1, and the scope of the claims was not broader than justified by the extent of the description. Since features a and b were per se clear, a specific denomination of these in the part of the description directed to the specific embodiment depicted in the figures was not mandatory. Any reading of the description and viewing of the figures had to be done with the knowledge that features a and b were present and interacted.

The description and drawings are used to interpret the claims. For case law in relation thereto see in this chapter II.A.6.3.

5.2. Restrictions on generalising the technical information and examples adduced in the description

The question of the extent to which the technical information and examples adduced in the description may be generalised in the formulation of the claims is usually examined in the context of the requirements of Art. 83 EPC (see in particular chapter II.C.5. "Clarity and completeness of disclosure"). Sometimes though it is also considered in the context of the requirement for support by the description. See also chapter II.C.8. "The relationship between Article 83 and Article 84 EPC".

In T.2231/09 the patent concerned a method of representing and analysing images. Claim 1 of the main request set out that "... at least one said descriptor element is derived using only a subset of pixels in said image." The appellant had put forward an interpretation according to which a "subset" could correspond to all pixels in the image, which the board considered inconsistent with essential parts of the described embodiments. The board stressed that, while a certain degree of generalisation may be permitted, features as claimed should make it possible to clearly identify features of embodiments that are covered by the terms of a claim. Moreover, the generalised subject-matter as claimed should make it possible to understand the technical problem to be solved. The terms of a claim should be commensurate with the invention's technical contribution to the art. The board regarded the division of the image into regions and subsets as essential for achieving the technical effect underlying the invention. Therefore, claim 1 was not supported by the description and did not comply with Art. 84 EPC 1973.

In T.659/93 the board held that the requirement that the claims should be supported by the description meant that they had not only to contain all the features presented as essential in the description, but had also to reflect the applicants' effective contribution by enabling the skilled person to carry out their teaching throughout the field to which they applied (similarly T.332/94 with reference to T.409/91, OJ 1994, 653).

In T. 939/92 (OJ 1996, 309) the examining division had raised the objection that the disputed claim was an unreasonable generalisation of the examples contained in the description. However, the board held that it did not follow from Art. 84 EPC 1973 that a claim was objectionable just because it was "unreasonably broad". The expression "supported by the description" meant that the technical features stated in the description as being essential features of the invention described must be the same as those used to define the invention in the claims, for otherwise the claims would not be true definitions but mere descriptions. If a claim concerned a group of chemical compounds per se, an objection of lack of support by the description could not properly be raised for the sole reason that the description did not contain sufficient information in order to make it credible that an alleged technical effect (which was not, however, a part of the definition of the claimed compounds) was obtained by all the compounds claimed (see, with regard to Art. 83 EPC, also T. 2001/12). The facts of the case in question differed from those underlying T. 409/91.

In T. 94/05 the board pointed out that the requirement for the claims to be supported by the description was intended to ensure that the extent of protection as defined by the patent claims corresponds to the technical contribution of the disclosed invention to the art (see also T. 409/91, T. 435/91). Therefore the claims must reflect the actual contribution to the art in such a way that the skilled person is able to perform the invention in the entire range claimed (T. 659/93). In the board's view, a purely formal support by the description, i.e. a verbatim repetition of the mention of a claimed feature, could not meet these requirements. To be allowable, functional features must disclose a clear teaching which the skilled person can carry out without undue burden (see T. 68/85, OJ 1987, 228). From this, it followed that the skilled person, at least after reading the patent specification, taking account of his common general knowledge, and possibly also after carrying out normal experiments, must actually be provided with at least a plurality of different embodiment variants. The reproducibility from the patent specification of the above-mentioned functionally defined feature was confined to the sole embodiment described. The board concluded that the functional definition in claim 1 did not adequately reflect the technical contribution described in the patent specification. Moreover, claim 1 and the description were contradictory, so that the claim was not supported by the description and the requirements under Art. 84 EPC were not met.

In T. 568/97 the claims defined the physiological effect to be achieved by a sufficiently high concentration of vasoactive intestinal polypeptide and/or prostaglandins as active agents in a pharmaceutical composition for transurethral administration. Neither individual values nor ranges of the amounts of vasoactive intestinal polypeptide and/or prostaglandins were disclosed in the patent. Furthermore, it was impossible to find out without undue burden the physiologically effective amounts as claimed merely on the basis of common general knowledge. The board held that the description of the patent lacked support within the meaning of Art. 84 EPC 1973 as to the amount of vasoactive intestinal polypeptide and/or prostaglandins required to achieve a physiologically effective dose. The functional feature not only had to be such that the skilled person could understand it; he also had to be able to implement it.

In T.484/92 the board concluded that, in contrast to T.409/91, the requirement of support by the description had been met and the appellant was entitled to claim the alleged invention in broad functional terms, i.e. in terms of the desired end effect, because, having disclosed one mechanism for achieving that goal, there were alternative ways of performing the invention at the disposal of the person skilled in the art, which would become apparent to him upon reading the description, based on his common general knowledge.

5.3. Bringing the description into line with amended claims

In T.977/94 the board decided that if the patentee amended his claims he had also to bring the description into line with them, because of its fundamental importance. An invention was only claimable to the extent that it was supported by the description (Art. 84, second sentence, EPC 1973), and the claims were interpreted in the light of the description (Art. 69 EPC 1973). So it was necessary to check that the essential elements of the invention claimed were also described as such in the description. See also T.300/04, T.1399/17.

In T.295/02 the board found that an inconsistency between a claim and the provisional description was not a valid reason to refuse the application if the inconsistency arose from an amendment, if it was apparent that the text of the description was not intended by the applicant to form the agreed basis of any decision, especially one concerning its consistency with the amended claims, and if the appellant was prepared to adapt the description to conform to a definite allowable set of claims.

In T.1808/06 the board recalled that, in order to meet the requirement of Art. 84 EPC that the claims have to be supported by the description, any disclosure in the description and/or drawings inconsistent with the amended subject-matter should normally be excised (see also T.1883/11, T.1252/11, T.237/16). Reference to embodiments no longer covered by amended claims must be deleted, unless these embodiments can reasonably be considered to be useful for highlighting specific aspects of the amended subject-matter. In such a case, the fact that an embodiment is not covered by the claims must be prominently stated (see also T.987/16). Reference to Art. 69(1) EPC was not an appropriate justification for a less stringent adaptation of the description and in so far misleading as it could be understood to suggest a direct applicability of its contents at the examination or opposition stage. This was clearly not the case as Art. 69(1) EPC related to the scope of protection (see in this chapter II.A.6.3.2). It was only in situations where the removal of inconsistencies was not possible for procedural reasons (e.g. no amendment possible of the granted version) that – purely as an auxiliary construction – Art. 69(1) EPC could be invoked for an interpretation of the claimed subject-matter.

In T.1989/18 the board observed that the description could not be relied upon to resolve a clarity issue in a claim, nor could it give rise to any such issue if the definition of the subject-matter in a claim was clear per se. In particular, if the claims were clear in themselves and supported by the description, their clarity was not affected if the description contained subject-matter which was not claimed. Art. 84 EPC could not serve as a legal basis for a refusal in such instances. When assessing clarity, Art. 69 EPC was of no relevance since

it was only concerned with the extent of protection conferred. In the absence of an objection of lack of unity under Art. 82 EPC, the board failed to see how R. 42(1)(c) EPC could be the legal basis for requiring the applicant, as a general rule, to bring the description in line with claims intended for grant, and to remove passages of the description that disclosed embodiments which were not claimed. A number of decisions have relied on R. 48(1)(c) EPC as a potential legal basis for requiring the description to be adapted to the subject-matter as claimed. However, the board held that there was general acceptance in the travaux préparatoires that the application should not be refused even if the application as filed contained statements or other matter contrary to "ordre public" or morality. It was therefore difficult to conceive that the legislator intended to impose more severe sanctions on less offensive matter, in particular to provide a ground for refusal based on the inclusion of merely "irrelevant or unnecessary" matter. T 1989/18 was followed in T 1444/20, but not in T 1024/18, T 121/20, T 2766/17, T 2293/18.

6. Interpretation of claims

6.1. General principles

According to the established case law, the skilled person should try, with synthetical propensity, i.e. building up rather than tearing down, to arrive at an interpretation of the claim which is technically sensible and takes into account the whole disclosure of the patent. The patent must be construed by a mind willing to understand, not a mind desirous of misunderstanding (see inter alia T 190/99, T 920/00, T 500/01, T 749/03, T 405/06, T 2480/11, T 2456/12, T 383/14, T 1477/15, T 448/16).

According to T 2764/19, claims of a European patent application are typically directed to a reader skilled in the field (and aware of the respective terminology) of that application. Given that such a technically skilled reader does not normally need any further description-based guidance, claims should essentially be read and interpreted on their own merits, rather than with the aid of the description and drawings (see e.g. T 223/05, T 1404/05, T 1127/16). The wording of the claims should typically be given its broadest technically sensible meaning by such a skilled reader. See also the decisions in this chapter II.A.6.3. "Using description and drawings to interpret the claims".

A considerable number of decisions have held that the skilled person, when considering a claim, should rule out interpretations which are illogical or which do not make technical sense (see inter alia T 190/99, T 552/00, T 920/00, T 1023/02, T 749/03, T 859/03, T 1537/05, T 1204/06, T 681/15). Some decisions (T 1408/04, T 1582/08, T 493/09, T 5/14, T 2110/16) have emphasised that this is understood to mean only that technically illogical interpretations should be excluded. A mind willing to understand does not require that a broad term need be interpreted more narrowly (even if, as in the case underlying T 1408/04, the narrower interpretation would refer to a structure which is very common, but not exclusive, in the technical field concerned).

In T 1771/06 a claim specifically referred with closed language to the characterising part (GBSS gene fragment in the antisense direction) of the gene construct and, in an attempt to generalise, left open other structural elements necessary to operate the system ("comprising a fragment ... which codes for, said fragment consisting of a nucleotide